

HOUSE BILL 764

By Williams

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 6, relative to searches on school property.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-4204(a), is amended by adding the following to the end of the subsection:

A search conducted pursuant to this subsection (a) may only be conducted by a school resource officer who is acting, for the purpose of the search, as a school official.

SECTION 2. Tennessee Code Annotated, Section 49-6-4204, is amended by adding the following as a new subsection:

(e) This section does not authorize a search that violates the fourth amendment to the United States Constitution or the Constitution of Tennessee, Article I, § 7.

SECTION 3. Tennessee Code Annotated, Section 49-6-4205(a), is amended by adding the following to the end of the subsection:

A searched conducted pursuant to this subsection (a) may only be conducted by a school resource officer who is acting, for the purpose of the search, as a school official. If a student is under eighteen (18) years of age, then the principal must notify the student's parent or legal guardian of the need to conduct a physical search of the student and receive the consent of the student's parent or legal guardian to conduct the search.

SECTION 4. Tennessee Code Annotated, Section 49-6-4205, is amended by adding the following as a new subsection:

(c) This section does not authorize a search that violates the fourth amendment to the United States Constitution or the Constitution of Tennessee, Article I, § 7.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.